

19. 9:01 AM CASE NUMBER: C24-03254
CASE NAME: MAJERRIS WALKER VS. CITY OF PITTSBURG
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER VERIFIED RESPONSES TO FORM
INTERROGATORIES, SET ONE (NOS. 6.4, 6.5, 6.7)
FILED BY: CITY OF PITTSBURG
TENTATIVE RULING:

This case asserts claims arising out of alleged police brutality. Defendant City moves to compel fuller responses to several interrogatories concerning medical treatment and care.

Plaintiff correctly points out that the motion is defective for not including a Separate Statement, which would have been helpful to the Court. However, plaintiff for his part makes no effort to try to resist the motion one interrogatory/response at a time, and he doesn't seriously try to defend the adequacy of the existing responses. He mainly asks for an opportunity to amend the responses.

Well, okay. He can have such an opportunity, because the Court **grants** the motion to compel in its entirety. Plaintiff must provide full and complete responses to the interrogatories in question, with verifications, by July 10, 2026.

No sanctions are requested.

20. 9:00 AM CASE NUMBER: C23-02420
CASE NAME: RUTH LEVINSON VS. CYNTHIA HO
HEARING ON MOTION TO EXPUNGE LIS PENDENS
FILED BY: CYNTHIA HO
TENTATIVE RULING:

This case was dismissed in March. Still remaining in place, however, is a lis pendens. Defendant Ho moves to expunge it. The motion is unopposed, and it is **granted**.

21. 9:00 AM CASE NUMBER: C25-00957
CASE NAME: EBMUD v. CHANDLER
HEARING ON MOTION TO DISMISS AND FOR SANCTIONS
FILED BY: JOHN B. CHANDLER
TENTATIVE RULING:

Defendant John B. Chandler's "Motion to Dismiss Pursuant to CCP § 430.10 and to Hold [Plaintiff] EBMUD in Civil Contempt," deemed a motion for judgment on the pleadings, is **denied**. Defendant's request for civil contempt and attorney fees is likewise **denied**.

Background

EBMUD owns a recorded 1983 easement consisting of a 20-foot-wide strip of land running across private property behind 16 Roberts Court in Contra Costa County. The easement traverses San Ramon Creek, descending one steep hillside, crossing the creek bed, and climbing the hillside on the other

side. Although the underlying land remains in private ownership, the easement gives EBMUD the legal right to install, operate, and maintain a water pipeline within that 20-foot corridor. In 1984, EBMUD exercised that right by constructing a 12-inch steel water main along the easement, encasing the pipe in concrete where it crosses the creek to protect it from the forces of the waterway. That pipeline provides water service to downstream customers and fire hydrants on the far side of the creek. (Complaint ¶¶ 6-7.)

This action arises from an unpermitted private sewer lateral that was built on top of that water main, inside EBMUD's easement, and that has now damaged the pipeline. Defendant John B. Chandler is the former owner of 16 Roberts Court and is alleged to have constructed the encroaching sewer lateral in or around 2008 or 2009, without calling USA North 811 (the "call before you dig" service that locates underground utilities), and without obtaining the streambed alteration permits required for work over San Ramon Creek. Defendants Matt Kauffman and Christy Kauffman now own 16 Roberts Court. (Compl. ¶ 3.)

In April 2022, EBMUD found a small leak in its water pipeline and traced it to a spot directly underneath one of Chandler's concrete support piers. The leak got worse that month. An internal inspection showed the top of the steel pipeline was damaged where one of the concrete piers sat on it. EBMUD was required to build a temporary wooden bridge across the creek to run an 8-inch bypass hose, shut down the damaged 12-inch main, and coordinate with the California Department of Fish & Wildlife on bridge placement to avoid harming the creek. (Compl. ¶ 11.)

On April 4, 2025, EBMUD filed this action for trespass, private and public nuisance and negligence against Chandler and the Kauffmans. EBMUD seeks to recover the costs of investigation, construction of the temporary pipeline, design and development of plans for a new pipeline, and agency permitting costs. EBMUD estimates its damages to be \$647,000. (Compl. ¶ 15.) EBMUD does not seek removal of the lateral or injunctive relief. Instead, it agreed to allow the Kauffmans to maintain the lateral in place and relocated its own pipeline within the easement to accommodate it. (Compl. ¶¶ 12-13.)

Chandler answered the complaint on July 17, 2025. On February 4, 2026, Chandler filed the present motion to dismiss and to hold EBMUD in contempt. Chandler contends that EBMUD's claims were discharged by operation of a May 12, 2010 order issued in Chandler's Chapter 7 bankruptcy proceeding (the Discharge Order). (Chandler's RJN, Exh. B.) Chandler contends that his installation of the sewer lateral in 2008 or 2009 predated his bankruptcy petition by at least a year, such that EBMUD's claims arise from prepetition conduct and were extinguished by the Discharge Order.

On April 30, 2026, EBMUD filed an opposition to the motion. On May 7, 2026, Chandler filed a reply. In its own research, the Court identified *In re Beezley* (9th Cir. 1993) 994 F.2d 1433, which addresses the dischargeability of unscheduled debts in no-asset Chapter 7 cases, and appeared potentially relevant to the notice analysis. The Court requested supplemental briefing from both parties on its relevance. Both parties submitted supplemental briefs on May 29, 2026.

Meet and Confer

The parties did not meet and confer as contemplated by Code of Civil Procedure § 439. Chandler sent EBMUD a letter on November 5, 2025 contending that its claims violated the discharge injunction and

requesting dismissal. EBMUD did not respond. (Schwartz Decl., Exh. C, ¶ 4.)

Because the court is deeming the motion a motion for judgment on the pleadings, the applicability of § 439's meet and confer requirement is uncertain. Failure to meet and confer is not grounds to grant or deny a motion in any event. (Code Civ. Proc., § 439(a)(4).) The Court decides the motion on the merits.

Request for Judicial Notice

Defendant requests judicial notice of the Voluntary Petition (Exh. A) and the Discharge of Debtor and Final Decree (Exh. B) filed in the bankruptcy court proceeding *In re John B. Chandler*, U.S. Bankruptcy Court, Northern District of California, Case No. 10-41450 RN 7. The court takes judicial notice of the authenticity of these documents and the legal effect of their language.

Legal Standards

Chandler has filed a motion to dismiss. That procedural vehicle is not recognized in these circumstances, but the motion may be treated as a nonstatutory motion for judgment on the pleadings. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.)

"[A] motion for judgment on the pleadings is equivalent to a demurrer." (*Ibarra v. Chuy & Sons Labor, Inc.* (2024) 102 Cal.App.5th 874, 881.) A court may sustain a demurrer when facts subject to judicial notice establish an affirmative defense. (*Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1076 [res judicata].) A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense, not merely that it might be barred. (*Flores v. Kmart Corp.* (2012) 202 Cal.App.4th 1316, 1325 (Flores).)

Generally, a Chapter 7 bankruptcy discharge order "operates as an injunction against the commencement or continuation of an action, the employment of process, or an act, to collect, recover or offset any such debt as a personal liability of the debtor, whether or not discharge of such debt is waived." (11 U.S.C. § 524(a)(2).)

State and federal courts have "concurrent jurisdiction to decide whether a claim within a discharge order is a discharged debt." (*Flores, supra*, 202 Cal.App.4th at p. 1325.) "[A] state court may consider the applicability of a bankruptcy discharge when it is raised as a defense to an action." (*Id.* at p. 1326.)

Ruling on the Motion for Judgment on the Pleadings

This motion requires detailed and complicated legal analysis. Before getting into those weeds, however, it may be stated up front what the basic, common-sense problem with Chandler's theory is. Under his theory, a bankruptcy filed and closed years ago – with no hint of notice to EBMUD either of Chandler's trespass, or of the bankruptcy proceeding – can nevertheless operate, in practical effect, to grant Chandler a *permanent* title right to occupy a position on top of EBMUD's pipeline, even when that occupation in fact results in actual physical damage to EBMUD's pipeline long after the bankruptcy is concluded. To state the proposition is to reject it. It would require substantial legal gymnastics for Chandler to validate this illogical and unfair result. He does not get there.

Chandler argues that EBMUD's claims are barred under 11 U.S.C. § 524(a) because his bankruptcy discharge operates to bar any suit against him based on his prepetition installation of the sewer lateral in 2008 or 2009. He contends that the claims "arose" prepetition under the Ninth Circuit's "fair contemplation" test. Citing *In re Ben Nye Co., Inc.*, 2025 Bankr. LEXIS 1451 (B.A.P. 9th Cir. June 17, 2025), and *Goudelock v. Sixty-01 Association of Apartment Owners* (9th Cir. 2018) 895 F.3d 633, 638, Chandler asserts that a claim arises prepetition, and is therefore subject to discharge, if the claimant could fairly contemplate it before the bankruptcy filing, even if the claim has not yet accrued under state law and even if the claimant has not yet discovered it.

Applying that test, Chandler asserts that EBMUD's claims were fairly contemplable in 2010 because (1) he installed the sewer lateral in 2008 or 2009, before he filed his petition; (2) the lateral was conspicuous, sitting "on top of" EBMUD's pipeline and requiring above-ground piers across the creek; and (3) As an easement holder, EBMUD had a duty under Civil Code § 845 to maintain and inspect its easement. Chandler concludes from this that EBMUD "reasonably knew" of the encroachment in 2010, and that any claim arising from the lateral installation was therefore fairly contemplable and barred by the Discharge Order as a matter of law. On that basis, Chandler asks the Court not only to dismiss EBMUD's complaint, but also to hold EBMUD in civil contempt under *Taggart v. Lorenzen* (2019) 587 U.S. 554, and to award him attorney's fees and costs for EBMUD's alleged violation of the discharge injunction.

EBMUD contends that a discharge defense fails. First, EBMUD argues that its trespass and nuisance claims were not discharged because Chandler failed to list EBMUD as a creditor in his Chapter 7 schedules and did not give EBMUD notice of the bankruptcy proceedings. 11 U.S.C. § 523(a)(3)(A) provides that a debt owed to a creditor who is neither scheduled nor noticed in time to permit timely filing of a proof of claim is excepted from discharge, unless the creditor had actual knowledge of the bankruptcy.

Second, EBMUD argues its claims are based on a continuing trespass and nuisance that survive any bankruptcy discharge. Under *O'Loughlin v. County of Orange* (9th Cir. 2000) 229 F.3d 871, 875, post-discharge violations are actionable even when they stem from pre-discharge conduct, because a bankruptcy fresh start "does not mean a continuing license to violate the law." EBMUD argues the sewer lateral Chandler installed continues to occupy its easement and continues to interfere with its use and enjoyment of that easement. Because the condition is abatable, EBMUD claims it constitutes a continuing nuisance and trespass under California law.

As to Chandler's separate request for civil contempt, EBMUD argues this Court lacks authority to entertain the request because a motion to enforce a discharge injunction must be brought in the bankruptcy court that issued the order. (*Barrientos v. Wells Fargo Bank, N.A.* (9th Cir. 2011) 633 F.3d 1186, 1188-1189; *Walls v. Wells Fargo Bank, N.A.* (9th Cir. 2002) 276 F.3d 502, 509.) Even if jurisdiction existed, EBMUD argues Chandler cannot satisfy the standard for contempt, which requires "no objectively reasonable basis for concluding that the creditor's conduct might be lawful under the discharge order." (*Taggart, supra*, 587 U.S. at p. 560.)

On reply, Chandler argues that only the bankruptcy court has authority to interpret and enforce the scope of the discharge injunction. He further argues that EBMUD was an unknown creditor not entitled to actual notice because at the time of his 2010 petition no leak had been identified, no damage was

known, and EBMUD did not discover the encroachment until April 2022. Citing *Chemetron Corp. v. Jones* (3d Cir. 1995) 72 F.3d 341, 347 (Chemetron), he contends that a debtor's duty extends only to creditors reasonably ascertainable from the debtor's books and records, and that EBMUD's claim was too speculative to require notice.

Chandler further argues that EBMUD's position is internally contradictory. 11 U.S.C. § 101(5) of the Bankruptcy Code defines a claim broadly to include any right to payment, whether or not reduced to judgment, liquidated, unliquidated, fixed, contingent, matured, unmatured, disputed, or undisputed. If EBMUD's rights were concrete enough to entitle it to constitutional notice, meaning it was a known creditor with an ascertainable claim, then it necessarily possessed a contingent prepetition claim within the meaning of § 101(5) that was subject to discharge. Conversely, if the claim was too speculative and undeveloped to exist prepetition because no leak had been identified, no damage had manifested, and no dispute existed as of the petition date, then EBMUD was merely an unknown creditor not entitled to actual notice, and the discharge would apply regardless.

Finally, Chandler argues that the continued presence of the sewer lateral is not a continuing tort but merely a continuing effect of a single completed prepetition act, and does not give rise to new post-petition claims.

Discharge in bankruptcy is an affirmative defense, and Chandler bears the burden of establishing it on the face of the complaint and judicially noticeable materials. Chandler has not carried that burden.

Even assuming Chandler could establish that EBMUD's claims arose prepetition under the fair contemplation test and constituted a dischargeable claim within the broad meaning of 11 U.S.C. § 101(5), he has not established on this record that the claims were in fact discharged.

11 U.S.C. § 523(a)(3)(A) provides in pertinent part:

(a) A discharge under section 727 . . . does not discharge an individual debtor from any debt—

* * *

(3) neither listed nor scheduled under section 521(a)(1) of this title . . . in time to permit—

(A) if such debt is not of a kind specified in paragraph (2), (4), or (6) of this subsection, timely filing of a proof of claim, unless such creditor had notice or actual knowledge of the case in time for such timely filing . . .

(11 U.S.C. § 523(a)(3)(A).)

Under § 523(a)(3)(A), a debt is not discharged where the debtor fails to schedule or list it and the creditor does not have notice or actual knowledge of the case in time to file a proof of claim.

The judicially noticed documents establish that EBMUD was not listed as a creditor in Chandler's Chapter 7 petition, and the Discharge Order does not identify EBMUD. The complaint contains no allegation that EBMUD received notice or had actual knowledge of the bankruptcy case, and Chandler identifies no judicially noticeable fact establishing such notice or knowledge.

Chandler argues EBMUD was an unknown creditor and therefore not entitled to actual notice. Constitutional “[d]ue process requires notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections.” (*United Student Aid Funds, Inc. v. Espinosa* (2010) 559 U.S. 260, 272.) In bankruptcy cases, what constitutes reasonably calculated notice to satisfy due process is different for known and unknown creditors. (*Chemetron, supra*, 72 F.3d at 347.)

The Supreme Court has explained that a known creditor is one whose identity is either actually known or “reasonably ascertainable by the debtor.” (*Tulsa Professional Collection Serv., Inc. v. Pope* (1998) 485 U.S. 478, 490.) An unknown creditor is one whose “interests are either conjectural or future or, although they could be discovered upon investigation, do not in due course of business come to knowledge [of the debtor].” (*Mullane v. Central Hanover Bank & Trust Co.* (1950) 339 U.S. 306, 317.) Known creditors are entitled to actual written notice of a debtor’s bankruptcy filing. (*Chemetron*, 72 F.3d at 345.) Notification by publication will generally suffice for unknown creditors. (*Id.*)

The parties dispute whether EBMUD was a known or unknown creditor. Chandler has not established on the face of the complaint or judicially noticeable matter that EBMUD was an unknown creditor whose identity was not reasonably ascertainable at the time he filed his bankruptcy petition. EBMUD’s easement was recorded in 1983 in the Contra Costa County Recorder’s Office (Compl. ¶ 6 and Exh. A), which gave Chandler constructive notice of the easement’s existence, boundaries, and purpose as a corridor for an underground water pipeline. The complaint alleges that Chandler installed the sewer lateral and its supporting concrete piers within EBMUD’s recorded easement and on top of EBMUD’s underground pipeline. (Compl. ¶ 8.) Whether Chandler actually knew about EBMUD’s easement when he installed encroaching structures within it, and if so whether his awareness made EBMUD’s potential claim for trespass and nuisance known to him at the time of his bankruptcy petition, are fact questions that cannot be resolved on this record.

In his supplemental brief, Chandler argues that *In re Beezley* (9th Cir. 1993) 994 F.2d 1433 requires dismissal. *Beezley* held that § 523(a)(3)(A) does not apply in a no-asset, no-bar-date Chapter 7 case. The provision excepts from discharge only debts where the creditor was not scheduled in time to permit timely filing of a proof of claim. Where no claims bar date was ever set, there is no deadline to miss, and the provision is never triggered. (*Id.* at p. 1434.) Because Chandler’s was a no-asset case with no bar date, Chandler argues, EBMUD’s lack of notice does not preserve its claims from discharge.

EBMUD responds that *Beezley* is not binding on this Court, that other federal circuits have reached the opposite conclusion, and that § 523(a)(3)(B)’s exception for intentional torts survives *Beezley* in any event. On that last point the court agrees. *Beezley* itself is clear that a debt of a type covered by § 23(a)(3)(B) is not discharged and remains non-dischargeable. (*Id.* at p. 1434.) The complaint alleges that Chandler acted willfully, intentionally, and without consent in installing the sewer lateral within EBMUD’s recorded easement and on top of its pipeline. (Compl. ¶ 17.) Whether EBMUD can prove that allegation is not a question for demurrer. Chandler has not established on the face of the complaint that § 523(a)(3)(B) does not apply.

In addition, the judicially noticed documents do not establish that this was in fact a no-asset case. As EBMUD points out, the petition does not list insurance policies or other assets that may have been

available to creditors. The Court cannot conclude from the petition schedules or Discharge Order alone that no assets existed.

A demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense, not that it might be barred. (*Flores, supra*, 202 Cal.App.4th at p. 1325.) Because the discharge defense is not necessarily established on the face of the complaint or judicially noticeable materials, the motion for judgment on the pleadings is denied. The Court does not reach EBMUD's argument that its claims are independently preserved under the continuing violation doctrine.

Ruling on the Request for Sanctions

The request for civil contempt sanctions is denied. Assuming the request is properly before this Court, Chandler has not established that EBMUD's claims were discharged, and therefore cannot show EBMUD violated any discharge injunction. The request for attorney fees and costs, which is predicated on a contempt finding, is also denied.

Conclusion

For the foregoing reasons, the motion is **denied**. EBMUD shall prepare the order and serve and file notice of entry of order.